

SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO
Law and Motion Calendar
Honorable Nicole S. Healy
800 N. Humboldt Street, San Mateo CA 94401
Department 28, Courtroom I
Wednesday July 1, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept28@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5128 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

EVERYONE APPEARING BY ZOOM MUST USE A CAMERA

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 226 9361 Password: 289347

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
02:00 PM LINE 1 18-CLJ-03920	CROWN ASSET MANAGEMENT, LLC VS. SUNNATILLO MUHAMADIEV, ET AL
CROWN ASSET MANAGEMENT, LLC SUNNATILLO MUHAMADIEV	ROBERT J. COLCLOUGH PRO SE

Motion to Set Aside Default and Default Judgment

TENTATIVE RULING:

Defendant's unopposed motion to Set Aside Default and Default Judgment is **DENIED**.

Defendant contends that the complaint was time-barred. The account went into default on or about June 19, 2016; the last payment on the account was on November 5, 2015; the complaint was filed on July 31, 2018. The statute of limitations is four years. (Code Civ. Proc., § 337, subd. (a).)

The proof of service filed on November 30, 2018, shows that defendant was personally served with the summons and complaint on September 14, 2018. Defendant does not dispute service, but contends that he did not understand that he had to respond because English is not defendant's first language. That does not relieve defendant of responding to the complaint.

Defendant's motion is untimely. (Code Civ. Proc., § 437, subd. (b) ["The court may, upon any terms as may be just, relieve a party . . . from a judgment, . . . taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.") That defendant claims "I did not know about this case until 2025, when I received a Notice of Levy," is inconsistent with having been personally served in 2018.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with this ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

02:00 PM **LINE 2**

21-CIV-02564

PEARL WU, MD, ET AL VS. THE PERMANENTE MEDICAL GROUP, INC.

PEARL WU
THE PERMANENTE MEDICAL GROUP, INC.

TIMOTHY C. TRAVELSTEAD
SPENCER DAVIDSON

Motion to be Relieved as Counsel

TENTATIVE RULING:

The hearing is continued to July 8, 2026.

02:00 PM **LINE 3**

22-CIV-05115

MARIA TORRECILLA-FLORES VS. STATE OF CALIFORNIA

MARIA TORRECILLA-FLORES
STATE OF CALIFORNIA (CALTRANS.)

JACQUELINE K. OH
JOSE GONZALEZ

Motion for Summary Judgment and Alternative Motion for Summary Adjudication

TENTATIVE RULING:

Defendant State of California's Motion for Summary Judgment or, in the Alternative, Summary Adjudication is **DENIED**.

Plaintiff Maria Torrecilla-Flores' Objections to Evidence are **SUSTAINED** to Nos. 5–9 and otherwise are **OVERRULED**.

Defendant State of California's Evidentiary Objections are **SUSTAINED** as to Nos. 1–2, 4–8, 10–16, 18 and otherwise are **OVERRULED**.

Defendant State of California (Caltrans) seeks summary judgment on plaintiff Maria Torrecilla-Flores's First Amended Complaint (FAC), which asserts a single cause of action for dangerous condition of public property, based on a December 13, 2021 incident in which Torrecilla-Flores was injured by a falling tree while traveling south on Interstate 280. (April 5, 2023 FAC, ¶¶ 13–40.)

The elements of a cause of action against a public entity for a dangerous condition are, *inter alia*, (1) the property was in a dangerous condition at the time of the injury and (2) the condition was either (a) created by the negligent or wrongful act of the entity's employee in the scope of employment or (b) extant for sufficient time prior to the injury for the entity to have taken protective measures and the entity had actual or constructive notice of the condition. (Gov. Code, § 835; *Cordova v. City of Los Angeles* (2015) 61 Cal.4th 1099, 1104.) Caltrans contends Torrecilla-Flores cannot establish either of these elements.

While Caltrans also seeks summary adjudication of multiple issues in the alternative, each of the identified issues are merely elements of the single cause of action or the cause of action itself. (See Feb. 6, 2026 Motion for Summary Judgment, at p. 2.) Because summary adjudication may only be granted if it completely disposes of a cause of action (Code Civ. Proc., § 437c, subd. (f)(1)), summary adjudication here may only be granted or denied in line with summary judgment.

A. Legal Standard on Summary Judgment

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ.

Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (*Id.*, at subd. (c).)

A defendant moving for summary judgment has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as either to the cause of action or a defense thereto, as applicable. (*Ibid.*)

The moving party’s ultimate burden of persuasion that there are no issues of triable fact never shifts to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and summary judgment must be denied — despite deficiencies in the opposition — if the burden has not been carried. (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416.)

Because summary judgment deprives an adverse party of the right to a trial, any doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830; *See’s Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) Thus, “[t]he moving party’s affidavits are to be strictly construed, and ... all conflicts in the affidavits are to be resolved in favor of the opposing party and all reasonable inferences are to be drawn in favor of that party as well.” (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.)

B. Caltrans Has Not Shown that Torrecilla-Flores Cannot Show that a Dangerous Condition Existed

A “[d]angerous condition” is defined as “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code, § 830, subd. (a).) “Whether the condition of property posed a substantial risk of injury to foreseeable users exercising due care is an objective standard and is measured by the risk posed to an ordinary foreseeable user.” (*Huffman v. City of Poway* (2000) 84 Cal.App.4th 975, 992.) It is generally a question of fact. (*Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139, 148.) Only if “reasonable minds can come to only one conclusion” may the question be decided as a matter of law. (*Ibid.*)

To meet its initial burden, Caltrans presents the following evidence: there had been no incidents, complaints, or reports from public employees regarding the trees near the site of the fallen tree in Caltrans’s Bay Area Incident Response System for the preceding ten years up through ten minutes before the incident. (Feb. 6, 2026 Separate Statement [Deft. Sep. Stmt.], Nos. 1 [tree fell at 12:10 a.m.], 9–10; see Feb. 6, 2026 Compendium of Evidence [Deft. Evid.], exh. 2, ¶¶ 5–11.) There had been no Customer Service Requests submitted through Caltrans’s Customer Service Request online program regarding any trees at the subject site for the year of 2021. (Deft. Sep. Stmt., Nos. 11–12.) This includes the date of the incident, meaning no

Customer Service Request for the subject incident was received despite the fact a tree fell on plaintiff's vehicle that day. (Deft. Evid., exh. 3, ¶¶ 3–11; Deft. Sep. Stmt., No. 1.) There were no reports of other trees falling and causing accidents near the subject site on the Traffic Accident Surveillance and Analysis System or traffic investigations of tree-related accidents by Caltrans's Traffic Safety Division from 2013 through 2021. (Deft. Sep. Stmt., Nos. 14–16.)

Further, Mark Franklin, the employee responsible for overseeing landscaping and tree maintenance at the site had not received any complaints about motor vehicle accidents caused by trees from 2018 through February 2026. (Deft. Sep. Stmt., No. 19.) The evidence shows that Franklin never received complaints or reports of any kind — not just motor vehicle accidents — about the trees from his subordinates or the public, including the incident involving plaintiff's vehicle. (Deft. Evid., exh. 4, ¶ 8.) That there were no incident reports — including as to the incident at issue — does not demonstrate the reliability of the database, or the reporting system, such that the court can infer that arboreal hazards would be detected and reported on a reasonably regular basis. Indeed, as noted above, this evidence — in the form of declarations — must be strictly construed against Caltrans as the moving party.

Even assuming the mere absence of prior accidents caused by a condition of public property can establish a *prima facie* case that the condition was not dangerous for purposes of Government Code, section 835, the evidence presented here does not demonstrate that the condition of the tree was not dangerous. In many cases, accident history is highly relevant to whether a particular condition presents a substantial risk of injury. If the condition *had existed* for a period of time and no one had been hurt *by that condition* then it is reasonable to conclude that absent a change in the condition it was not dangerous. (See, e.g., *Sambrano v. City of San Diego* (2001) 94 Cal.App.4th 225, 243; *Callahan v. City and County of San Francisco* (1971) 15 Cal.App.3d 374, 379.)

In this case, however, the allegedly dangerous condition is that a particular tree fell on plaintiff's car, not that the collection of trees at the site was dangerous. (See FAC, ¶ 13.) One would hardly expect prior accidents: the tree should fall only once. That this tree or other trees near it had not fallen previously does not show that the tree that fell on plaintiff's car did not constitute a dangerous condition either long before the accident or shortly before the accident during the stormy conditions. (See Deft. Sep. Stmt., No. 5 [“raining” and “windy” at time of accident].)

Furthermore, to the extent any history is relevant, Caltrans's evidence of reports has important omissions in its coverage. Caltrans does not set forth in its separate statement or its evidence any facts demonstrating that, had any prior accidents occurred, they would have been included in one of the databases, such that a juror could find that the absence of a reported accident in these databases means that no prior accidents had happened. Caltrans cites to no other evidence in its memoranda on this point, and therefore has failed to carry its initial burden of presenting evidence establishing a *prima facie* case that a dangerous condition did not exist.

While Caltrans has not carried its burden as to the existence of a dangerous condition, it may still prevail by showing the absence of any triable issue of material fact as to both (1) that

Caltrans lacked actual or constructive notice of the dangerous condition and (2) that the condition was not created by the negligent or wrongful act of a Caltrans employee. Meanwhile, Torrecilla-Flores may prevail by establishing a triable issue as to either one of these issues.

C. Triable Issue as to Constructive Notice of Condition

A plaintiff may show a public entity had either actual notice or constructive notice of a dangerous condition. “To establish actual notice, ‘[t]here must be some evidence that the employees had knowledge of the particular dangerous condition in question’; ‘it is not enough to show that the [public entity’s] employees had a general knowledge’ that the condition can sometimes occur.” (*Martinez v. City of Beverly Hills* (2021) 71 Cal.App.5th 508, 519.) “To establish constructive notice, the plaintiff must prove ‘the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character.’” (*Kabat v. Department of Transportation* (2024) 107 Cal.App.5th 651, 665, quoting Gov. Code, § 835.2, subd. (b).)

In addition to the previously discussed report history (see Deft. Sep. Stmt., Nos. 9–19), Caltrans offers the following evidence to show it did not have notice of the dangerous condition: Franklin, the tree maintenance supervisor, had not observed any “falling, leaning, breaking, overgrown, old, unstable, unhealthy, decaying, or dried out” trees at the subject site on the more than two hundred occasions he drove south along Interstate 280 from May 1 to December 12, 2021. (Deft. Sep. Stmt., No. 20.) Caltrans also points out that (not surprisingly given the circumstances) Torrecilla-Flores herself never placed Caltrans on notice of the tree before it fell on her. (*Id.*, at Nos. 31–32.)

Significantly, Franklin’s declaration only establishes that he had no personal knowledge of the allegedly dangerous condition. (See Deft. Evid., exh. 5, *passim*.) He states that he is “the Caltrans Maintenance Supervisor responsible for overseeing landscaping and tree and vegetation maintenance on and along I-280 within Daly City, California, including the sloped areas containing trees next to the travel lanes;” that he never personally noticed any hazardous trees at the site; and that no one underneath him reported anything to him; he does not state there were other Caltrans employees that also could have had personal knowledge or received reports. That is, even if Franklin did not have actual or constructive notice of any dangerous conditions at the site, his declaration does not show that Caltrans lacked actual or constructive notice through some other source.

The burden of proof at trial is nevertheless on Torrecilla-Flores to prove that knowledge. Caltrans offers Torrecilla-Flores’s responses to written discovery. When asked what facts support her contention that Caltrans had actual notice of the dangerous condition, Torrecilla-Flores essentially only provided a bare legal assertion that Caltrans had actual notice. (Deft. Sep. Stmt., No. 28.) This is sufficient to shift the burden to Torrecilla-Flores to produce evidence showing a triable issue of material fact. (See *Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1598 [“defendant may rely upon factually insufficient discovery responses by the plaintiff to show that the plaintiff cannot establish an essential element of the cause of action sued upon”].)

When asked what facts support her contention that Caltrans had constructive notice of the dangerous condition, Torrecilla-Flores’ responded: “[The tree] was an overgrown, old, unhealthy, unstable, and/or otherwise hazardous tree located at or near the [subject site]. [The tree] was permitted to grow directly at the right shoulder of the [subject site] by [Caltrans]. ... The [the tree] had been hazardous for enough time before the incident that a reasonable inspection would have revealed the dangerous condition.” (Deft. Sep. Stmt., No. 29.) While essentially a recitation of her pleading’s allegations, they are still facts: the tree’s hazardousness would have been revealed by a reasonable inspection because the tree was unhealthy or unstable and adjacent to the shoulder. Caltrans cannot rely on this response to shift the burden on constructive notice.

Thus, the evidence discussed above must make out a prima facie case that the condition had either not “existed for such a period of time” or was not “of such an obvious nature that [Caltrans], in the exercise of due care, should have discovered the condition and its dangerous character.” (Gov. Code, § 835.2, subd. (b).) In cases like this one, public entities may satisfy their burden by producing evidence showing the relatively hidden nature of the dangerousness the condition. (See, e.g., *Martinez v. City of Beverly Hills* (2021) 71 Cal.App.5th 508, 526 [prima facie case of lack of constructive notice made by testimony about “insignificant” less-than-two-inch divot]) or the absence of reports of the dangerous condition during reasonably adequate inspections (see, e.g., *Heskel v. City of San Diego* (2014) 227 Cal.App.4th 313, 318–319 [evidence of work crews dispatched to area for repairs not reporting a downed street sign]; see also Gov. Code, § 835.2, subd. (b)(1) [relevant evidence includes whether “existence of the condition and its dangerous character would have been discovered by an inspection system that was reasonably adequate (considering the practicability and cost of inspection weighed against the likelihood and magnitude of the potential danger to which failure to inspect would give rise)”].)

Again, the absence of prior accidents Caltrans offers does not demonstrate the absence of triable issues of material fact, especially when the referenced databases fail to report at least one known significant incident (i.e., the accident here). In addition to the absence of reports, Franklin states he also never observed a hazardous tree while driving south along Interstate 280, where he “saw the trees that were next to the travel lanes hundreds of times ... for purposes of performing landscaping, tree or vegetation related maintenance or inspections, and generally as [he] drove through the area from one assignment to another.” (Deft. Evid., exh. 5, ¶ 9.) This statement does not demonstrate that all trees near the roadside that were at risk of falling would be detectable from a vehicle traveling at highway speeds or that this inspection was otherwise reasonably adequate in light of the potential danger, especially when the declaration is not precise about when these drive-by inspections occurred. (See *Stanford v. City of Ontario* (1972) 6 Cal.3d 870, 882–883 [period of notice may be of extremely short duration to support constructive notice in some cases].)

However, even were this evidence deemed to make out a prima facie case of the absence of constructive notice, Torrecilla-Flores shows a triable issue as to whether Caltrans should have discovered the tree’s risk of falling “in the exercise of due care.” (Gov. Code, § 835.2, subd. (b)(1).) She presents Franklin’s deposition testimony, which states — construed in favor of Torrecilla-Flores as required — that Franklin received no training from Caltrans regarding the

identification of hazardous trees apart from identifying those that are visibly dead. (June 9, 2026 Pltf. Sep. Stmt., No. 20; June 9, 2026 Declaration of Jacqueline K. Oh, exh. E [Franklin tr.], at p. 23:4–24.) Even then, he was not trained to identify all possible visual indicators of a dead tree. (Oh Decl., exh. E [Franking tr.], at p. 23:19–24.)

During his inspections, Frankling was not accompanied by an arborist, even during the once-yearly inspections, and he would only note those trees he could identify as “possibly ... dead or leaning extremely or that could cause a nuisance.” (Oh Decl., exh. E [Franklin tr.], at p. 24:13–21.) Despite Franklin’s professed inability to identify all potential hazards, Caltrans did not select a more qualified person to conduct the annual inspection prior to the accident. (*Id.*, at p. 28:6–18.) This went against Caltrans’s own policies regarding tree inspections. (*Id.*, at pp. 30:5–31:13, 33:24–34:25, 37:14–25; see also *id.*, at exh. F [“It is often difficult to detect conditions such as loss of root support, interior rotting and split limbs ... Consult your Tree Maintenance Supervisor”]; cf. exh. E [Franklin tr.], at p. 32:10–15 [no Tree Maintenance Supervisor for subject site in 2020–2021].)

Caltrans contends that the fact it may not have followed its own policies designed to protect against the type of accident that occurred here cannot, as a matter of law, be used at all in an action for dangerous condition of public policy, citing *Posey v. State of California* (1986) 180 Cal.App.3d 836 (*Posey*) and *Miller vs. Pacific Gas & Electric Co.* (2023) 97 Cal.App.5th 1161 (*Miller*). This contention is based on a misstatement of law. In *Posey*, the Court held that policies that are not formal regulations do not create *mandatory duties*, not that such policies were irrelevant or inadmissible to establish a duty of care. (*Posey, supra*, at pp. 847–848.) The plaintiff was not asserting a cause of action under Government Code, section 835 and alleging a dangerous condition should have been discovered by a public entity exercising due care but attempting to hold a public liable under section 815.6 for failing to discharge a duty “imposed by an enactment.” (Gov. Code, § 815.6; see *Posey, supra*, at pp. 847–848.) Even where a public entity is not subject to an express mandatory duty does not mean that everything the entity does is reasonable. In *Miller*, the plaintiff was also not using government policies to establish the duty of care. (See *Miller, supra*, at pp. 1167–1168.) Instead, the plaintiff was attempting to establish that a sidewalk defect was not trivial, the fact that the defendant municipality had a policy of repairing small cracks did not mean that every such crack created a substantial risk of injury. (*Ibid.*)

Caltrans further argues that Torrecilla-Flores “does not cite any statutory authority or case law which identifies the legal standards for what constitutes ‘qualified’ or ‘unqualified’ personnel for purposes of inspections or constructive notice under similar facts.” (June 18, 2026 MPA, at p. 12, ll. 4–6.) Importantly, neither does Caltrans, and, before reaching Torrecilla-Flores’s evidence, it is Caltrans that bears the initial burden of establishing that the dangerous condition could not have been detected by reasonably adequate inspection in time to have protected against it. But Caltrans has introduced no evidence of when the condition arose, instead relying on the presumed reasonableness of its inspections — as to which Caltrans does not cite any statutory authority or case law which identifies the legal standards constituting what constitutes due care for purposes of inspections or constructive notice under similar facts.

Therefore, at the very least, there exists a triable issue of material fact as to whether Caltrans had constructive notice of the dangerous condition a sufficient time prior to the injury to have taken measures to protect against the dangerous condition. Accordingly, the motion is denied.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 4**

23-CIV-03393

ERICA ROBINSON VS. DORATRIZ PADILLA, ET AL

ERICA ROBINSON
DORATRIZ PADILLA

NIALL P. MCCARTHY
PETER L. ISOLA

Defense Motion for Summary Judgment and Alternative Motion for Summary Adjudication

TENTATIVE RULING:

Defendants Doratriz Padilla and eXp Realty have moved for summary judgment or, alternatively, summary adjudication of issues against plaintiff Erica Robinson, as Successor-in-Interest to the Estate of Martin J. Lanfranco and as executor of the Martin J. Lanfranco Revocable Trust.

For reasons addressed below, defendants' motion is **DENIED** as to plaintiff's first, second, and third causes of action, and as to plaintiff's demand for punitive damages against defendant Padilla. Defendant's motion is **GRANTED** as to plaintiff's demand for punitive damages against defendant eXp Realty.

The court declines to rule on the objections filed by plaintiff and defendant, as the the evidence subject to those objections is not material to the disposition of this motion. (Code Civ. Proc., § 437c, subd. (q).)

A. Factual Summary

Plaintiff's decedent Martin Lanfranco was an 84-year-old man who, before he died in 2024, had managed his acute bi-polar and schizoaffective disorder with the support of family over many years. (Pltf's Separate Statement of Undisputed Material Facts in Opp. to MSJ [Pltf's SSUMF] and Additional Material Facts [AMF], filed June 11, 2026 Nos. 1, 10-11.) Lanfranco was married to Esperanza Bijasa and had regular contact with Esperanza's daughter Christianne (Chris) Kernes and her husband Shawn. (AMF Nos. 5-7.) Given Lanfranco's mental illness, his family generally assisted with, or at least was looped in on, his real estate decisions. (AMF No. 12.) When Lanfranco first inquired in 2020 about listing his condo at 555 Laurel Avenue (the Laurel Property) for sale, his family understood that his interest in understanding the condo's value was a symptom of his mental illness. (AMF No. 13.) According to his son-in-law Shawn Kernes, when Lanfranco was in a manic episode he would become obsessed with attempting to value his assets, including any real estate he owned. (*Ibid.*) In March 2021, Lanfranco indicated that he intended to move closer to Chris and Shawn, so they lined up showings for him in the El Dorado Hills area. (AMF No. 17.) Lanfranco abruptly changed course and decided he wanted to sell his condo and move to a single-family home in San Mateo. (AMF Nos. 18-20.)

Around April 18, 2022, Lanfranco also began working with Edgardo (Ed) Barreto of Side Inc. to sell the Laurel Property and purchase a single-family home. (Defts.' Separate Statement of Undisputed Material Facts [Defts' SSUMF], filed April 9, 2026, No. 5; AMF No. 21.) In addition to a property at 3358 Marisma Street (the Marisma Property), Barreto also planned to show Lanfranco other properties. (SSUMF No. 5; AMF No. 22.) Given Lanfranco's finances, Barreto discussed with him selling the Laurel Property or else proceed through HomeLight so he could make a purchase. (AMF Nos. 23, 25.) HomeLight is designed to protect sellers in a buy/sell transaction by providing them with up to 90 percent of their property's current value to purchase a replacement property. (AMF Nos. 24-25.)

While Lanfranco was still represented by Barreto, defendant Doratriz Padilla poached him as her own client. (AMF No. 28.) Padilla took no steps to determine whether Lanfranco already had an agent and began working with him while he was still represented by Barreto. (AMF No. 30.) She brought Lanfranco food and snacks and offered him back rubs and other signs of physical affection, flirtatious conduct that made Lanfranco's wife very uncomfortable. (AMF Nos. 35-36.) Due to Lanfranco's mental illness, his friend and prior agent, Patrick Ryan, had always included family members in property discussions. (AMF No. 37.) Padilla did not include Lanfranco's family members in conversations. (AMF No. 38.) While Barreto had put contingencies in place to assist Lanfranco to afford the Marisma Property, Padilla helped Lanfranco find specialty financing for an all cash, no-contingencies offer on that property. (AMF No. 44.)

The Marisma Property was listed for \$1.849 million, which Padilla believed was more than its fair market value. (AMF Nos. 45, 53.) Although Lanfranco agreed to make an offer under \$1.849 million on the Marisma Property, Padilla communicated that she had learned from the seller's agent that the property already had a lot of offers and the seller was expecting over \$2 million. (AMF No. 46.) The seller's agent denied that she communicated to Padilla what sort of offer needed to be made in order to be competitive. (AMF No. 47.) Based on the information Padilla provided to Lanfranco, he authorized her to make a \$2.05 million, all-cash, no contingencies offer on the Marisma Property, the only offer that was made on the property. (AMF Nos. 48-49.) Even though \$2.05 million was more than the amount she thought the property was worth, Padilla helped Lanfranco make the all-cash offer with no contingencies. (AMF Nos. 44, 50.) This higher price allowed Padilla to earn a higher commission. (AMF No. 52.) After Padilla made the offer on the Marisma property, the sellers accepted that offer within a matter of hours. (AMF No. 54.)

Instead of putting in place any contingencies or other protections for Lanfranco, Padilla sent a copy of the completed residential purchase agreement to Conrado Perez of LoanDepot. (AMF No. 55.) Perez forwarded the signed agreement to mortgage broker Dean Delis. (AMF No. 56.) Delis contacted Bridge Lending, which agreed to offer Lanfranco a bridge loan (collateralized by both his Laurel property and the newly acquired Marisma property), which required Lanfranco to make monthly interest payments of \$14,520.83 until he could sell the Laurel property. (AMF No. 57.) Once he sold the Laurel property, under the terms of the loan he still owed a monthly mortgage payment of nearly \$8,000 per month, whereas previously his

mortgage payment on Laurel had been only \$2,609 per month. (AMF Nos. 58-59.) Further, after one year, a balloon payment in the full amount was due on June 1, 2023. (AMF No. 57.)

When Padilla put in the offer of \$2.05 million for the Marisma Property, Lanfranco only had about \$420,000 in assets. (AMF No. 68.) Padilla knew that Lanfranco had to sell the Laurel Property at close to the price he already had to pay for the Marisma Property. (AMF No. 69.) While Lanfranco indicated that he expected the Laurel Property to sell for over \$2 million, Padilla did not believe it was worth even \$1.698 million. (Defts' SSUMF No. 35; AMF No. 70.) Nonetheless, Padilla listed the Laurel Property for \$1.698 million on April 26, 2022. (SSUMF No. 35.) Padilla told Lanfranco they could just lower the price later if the price was too high even though she knew the value of the property would decrease if it did not sell quickly. (AMF No. 72.) Just two days later, on April 28, 2022, she dropped the price on the Laurel Property to \$1,580,000. (AMF No. 73.) Another five days later, she dropped the price again, this time to \$1,438,000. (AMF No. 74.) When no offers were received, she eventually lowered the price to \$1.38 million in June. (SSUMF No. 36.) Padilla knew Lanfranco had to accept an offer on the Laurel property to cover the purchase of the Marisma property. (AMF No. 75.) Lanfranco eventually accepted the only written offer he received on the Laurel property of \$1.32 million. (AMF No. 77.)

After Lanfranco moved into the Marisma Property, he began discussing refinancing options with Shawn Kernes. (AMF No. 79.) Lanfranco's mortgage broker and the lender had conversed about their concern that Lanfranco could not qualify for the necessary refinance loan with social security and dividend as his only sources of income. (AMF No. 80.) On May 3, 2023, the lender informed Lanfranco that they would foreclose on the Marisma Property if he did not pay delinquent installments within 15 days. (AMF No. 86.) Ultimately, Lanfranco was unable to refinance and received a foreclosure notice after less than a year. (AMF Nos. 86-88.) At this point, Lanfranco contacted Patrick Ryan, who assisted him in selling the property. (AMF No. 87.) On June 22, 2023, Lanfranco sold the Marisma Property for \$1.7 million, a loss of over \$300,000. (AMF No. 88.) Lanfranco told Ryan he needed to sell the Marisma Property because he could not afford the loan payments. (AMF No. 87.)

B. Legal Standard

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (*Id.*, subd. (c).)

"A party may move for summary adjudication as to one or more causes of action within an action ... if the party contends that the cause of action has no merit" (Code Civ. Proc., § 437c, subd. (f)(1).) A cause of action has no merit if one or more of its elements cannot be separately established or an affirmative defense can be established. (*Id.*, subd. (o).)

A defendant moving for summary judgment or summary adjudication has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as either to the cause of action or a defense thereto, as applicable. (*Ibid.*)

The moving party's ultimate burden of persuasion that there are no issues of triable fact, however, never shifts to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and summary judgment must be denied—despite deficiencies in the opposition — if the burden has not been carried. (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416.)

Because summary judgment deprives an adverse party of the right to a trial, any doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830; *See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) Thus, “[t]he moving party’s affidavits are to be strictly construed, and ... all conflicts in the affidavits are to be resolved in favor of the opposing party and all reasonable inferences are to be drawn in favor of that party as well.” (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.)

C. Discussion

1. Triable Issues of Fact Exist Regarding Plaintiff’s Financial Elder Abuse Claim

Under California law, financial abuse of an elder occurs when a person or entity: (1) takes, secretes, appropriates, obtains, or retains real or personal property of an elder for a wrongful use or with intent to defraud; (2) assists in taking such property for wrongful use or with intent to defraud; or (3) takes such property by undue influence. (Welf. & Inst. Code, § 15610.30, subd. (a).) Property is considered taken when an elder is deprived of any property right, including through agreements, transfers, or bequests. (*Id.*, subd. (c).) A person is deemed to have taken property for wrongful use if they knew or should have known the conduct was likely to be harmful to the elder. (*Id.*, subd. (b).)

Here, Padilla testified at her deposition that she knew Lanfranco would likely not be able to cover the loan for the Marisma Property if he did not sell the Laurel Property for close to \$2 million – i.e., for roughly the same price as the Marisma Property. (AMF No. 69.) Yet, she facilitated his purchase of the Marisma Property for \$2.05 million without any contingencies, earning herself a significant commission, even though she believed the price was too high and despite having concerns that the Laurel Property would not sell for even \$1.5 million. She then listed the Laurel Property at \$1.698 million – above what she believed it was worth – and told Lanfranco that they could lower the price later, despite knowing that the property’s value would decrease if it did not sell quickly. (AMF Nos. 71, 72.) Within one week, she dropped the price twice, with the final listing at \$1.438 million. (AMF Nos. 73, 74.) Needing to sell the Laurel Property to cover the purchase of the Marisma Property, Lanfranco eventually accepted

the only written offer he ever received, for \$1.32 million. (AMF Nos. 75, 77.) This evidence establishes that there is a triable issue of fact as to whether defendant Padilla engaged in this conduct with knowledge that that Lanfranco would likely be harmed.

Accordingly, defendants' motion for summary judgment or, alternatively, summary adjudication of issues is **DENIED** as to plaintiff's claim for financial elder abuse.

2. Triable Issues of Fact Exist Regarding Plaintiff's Breach of Fiduciary Duties Claim

Under both the common law and Civil Code, section 2079.16, real estate brokers owe their own clients a "fiduciary duty of utmost care, integrity, honesty, and loyalty." (*Field v. Century 21 Klowden-Forness Realty* (1998) 63 Cal.App.4th 18, 26-27.) The agent's fiduciary duties to a client includes the duty to exercise the utmost good faith and loyalty and to reasonably provide the principal with information that the principal deems important. (*Id.*, at p. 25.) An agent's ignorance of a particular fact "does not excuse her failure to make reasonable inquiry." (*Montoya v. McLeod* (1985) 176 Cal.App.3d 57, 65.)

"[A] real estate agent, as a fiduciary, is . . . liable to his principal for constructive fraud," which "comprises any act, omission or concealment involving a breach of legal or equitable duty, trust or confidence which results in damage to another even though the conduct is not otherwise fraudulent." (*Michel v. Moore & Assocs., Inc.* (2007) 156 Cal.App.4th 756, 762–63.)

Here, plaintiff contends that Padilla affirmatively misrepresented to Lanfranco that the Marisma Property would require a bid of at least \$2 million, based on her discussions with the listing agent, Sandra Rostad. Padilla testified at her deposition that when she informed the listing agent, Sandra Rostad, of her intent to make an offer below the asking price of \$1.849 million, Rostad told her: "Not going to happen. I have way too many people that, you know, calling, and the seller will not go — you know, we have offers up to — up to \$2 million," and that it was the seller's expectation the property would sell for "a little over 2 [million]." (Wang Decl., exh. 3 [Padilla tr.], at p. 103:5-25) However, Rostad testified at her deposition that she "[a]bsolutely [does] not" recall communicating that to Padilla and did not provide Padilla any indication of what offers had been received and what sort of offer was needed to be competitive toward purchasing the Marisma Property. (Wang Decl., exh. 4 [Rostad tr.], at pp. 31:3-32:6.) Rostad further testified that Lanfranco's offer was the only offer received on the property and that the sellers accepted the offer the same day it was made. (*Id.*, at pp. 36:6-9, 50:25-52:3.) Padilla has admitted that Lanfranco paid more for the Marisma Property than she believed it was worth at the time. (Wang Decl., exh. 18, [Padilla Response to RFA, Set One, No. 10].) Defendants do not dispute these facts but argue that they are immaterial. (Defs.' Responses to SSUMF, Nos. 46-50.)

Plaintiff has produced evidence showing that a triable issue of fact exists as to whether Padilla affirmatively misrepresented to Lanfranco that a bid of \$2 million or higher would be necessary to purchase the Marisma Property. Such an affirmative misrepresentation would be a clear breach of Padilla's duty of loyalty and good faith. Even assuming the representation was not made with an intent to deceive, a question of fact would remain as to whether Padilla breached

her duty of good faith and loyalty to investigate further regarding value of the property, given that no other offers had been made on the property, and that Padilla herself did not believe the property was worth the price at which it was listed.

Accordingly, defendants' motion for summary judgement or, alternatively, summary adjudication of issues is **DENIED** as to plaintiff's claim for breach of fiduciary duty.

3. Triable Issue of Fact Exist Regarding Plaintiff's Negligence Claim

Both parties argue that the determination of plaintiff's negligence claim follows their respective positions on the determination of plaintiff's claim for breach of fiduciary duty.

For the same reasons discussed in the previous section concerning plaintiff's claim for breach of fiduciary duty, defendants' motion for summary judgment or, alternatively, summary adjudication of issues concerning plaintiff's negligence claim is **DENIED**.

4. Triable Issue of Fact Exist Regarding Plaintiff's Demand for Punitive Damages

To support a claim for punitive damages, a plaintiff must prove by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice pursuant to Civil Code, section 3294. Without these facts, a claim for punitive damages must be rejected. (*College Hospital, Inc. v. Super. Ct.* (1994) 8 Cal.4th 704, 721; *Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872; *Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.)

Civil Code, section 3294, subdivision (c) provides that:

- (1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [Despicable conduct" is defined in CACI Jury Instruction No. 3114 (2026) as "so vile, base, or contemptible that it would be looked down on and despised by reasonable people."]
- (2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.
- (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

A broker acts in a fraudulent or malicious manner when they fail to fully disclose to their clients "any facts known to them which were material to the transaction and which might affect their clients' decision." (*Bate v. Marsteller* (1965) 232 Cal.App.2d 605, 612-13 [finding

evidence of such fraudulent and malicious conduct where broker told client that \$38,200 was the highest possible price even though he knew the client was asking for \$50,000 to \$52,000].)

The evidence that Padilla failed to disclose that the Marisma Property was listed at a price above its fair market value and that she falsely claimed that Lanfranco needed to offer over \$2 million to purchase the property supports plaintiff's demand for punitive damage. A jury could reasonably find Padilla intentionally deceived Lanfranco to earn a higher commission.

Accordingly, defendant's motion for summary judgement or, alternatively, summary adjudication of issues is **DENIED** as to plaintiff's demand for punitive damages against defendant Padilla.

However, plaintiff has not provided facts to establish triable issues of fact concerning the liability of defendant eXp Realty for punitive damages. Plaintiff argues that eXp ratified Padilla's conduct based on evidence that it was aware of her misconduct through her emails with eXp's broker concerning Ed Barreto's complaint against her, and that Padilla remained employed by eXp thereafter, and is represented by the same counsel as eXp in this lawsuit. Plaintiff has provided no citations to evidence concerning the alleged complaint made by Barreto, nor other evidence establishing eXp's awareness of wrongful conduct by Padilla. A review of the excerpts of transcripts from Barreto's deposition, submitted by plaintiffs (Wang Decl., exh. 7) suggest that he may have complained about Padilla poaching his client, Lanfranco. Even if the evidence before the court was conclusive on that point, it would hardly begin to inform eXp of the material facts giving rise to Padilla's alleged misconduct here. Moreover, ratification cannot be based solely on the fact that an employer and employee are represented by the same counsel in a lawsuit arising from the employee's alleged wrongdoing. (*Plancarte v. Guardsmark* (2004) 118 Cal.App.4th 640, 647-649.)

Accordingly, defendants' motion for summary judgment or, alternatively, summary adjudication of issues is **GRANTED** as to plaintiff's demand for punitive damages against defendant eXp Realty.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 5**

24-CIV-05711

WPS GLOBAL CONNEX, LLC VS. ROSIE BARRETT, ET AL

WPS GLOBAL CONNEX, LLC
ROSIE BARRETT

CRISOSTOMO G. IBARRA
KUSCHA HATAMI FARD

Motion to be Relieved as Counsel (Kuscha Hatami Fard)

TENTATIVE RULING:

The unopposed motion of Kuscha Hatami Fard to be relieved as counsel of record for defendants Rosie Barret and James E. Barrett Corp. is denied without prejudice for lack of proof that all parties received proper notice of the hearing date. The motion was filed and served on March 23, 2026. However, the hearing date on the notice of motion was changed from April 15, 2026, to July 1, 2026 at the time of filing. To date, the court's record does not indicate that an amended notice of motion has been filed or served.

02:00 PM **LINE 6**

24-CIV-05711

WPS GLOBAL CONNEX, LLC VS. ROSIE BARRETT, ET AL

WPS GLOBAL CONNEX, LLC
ROSIE BARRETT

CRISOSTOMO G. IBARRA
KUSCHA HATAMI FARD

Motion to be Relieved as Counsel (Bruno Tarabichi)

TENTATIVE RULING:

The unopposed motion of Bruno Tarabichi to be relieved as counsel of record for defendants Rosie Barret and James E. Barrett Corp. is denied without prejudice for lack of proof that all parties received proper notice of the hearing date. The motion was filed and served on March 23, 2026. However, the hearing date on the notice of motion was changed from April 15, 2026 to July 1, 2026 at the time of filing. To date, the court's record does not indicate that an amended notice of motion has been filed or served. In addition, the proof of service states that the motion was served on plaintiff's counsel electronically at cris.ibarra@ibarrapl.com. Counsel's electronic address of record and the address on a document filed on March 17, 2026 is cgibarra@aol.com

02:00 PM **LINE 7**

24-CIV-07448

XIAOCHAO ZHU VS. RECOLOGY, INC., ET AL

XIAOCHAO ZHU
RECOLOGY, INC.

KEVIN GOLSHANI
P. CHRISTIAN SCHELEY

Plaintiff's Motion to Compel Further Responses

TENTATIVE RULING:

For the reasons stated below, plaintiff Xiaochao Zhu's "Motion to Compel Further Responses and Production (RFP Set One, Nos. 5 & 12) (Incident Report); Request for In-Camera Review; Request for Sanctions," filed November 22, 2024, is **DENIED**.

A. Background

This case arises from a July 5, 2023 motor vehicle collision. Plaintiff's Complaint alleges that defendant McAlavey, while operating his employer's (defendant Recology, Inc.) tractor-trailer truck, and while in the course and scope of his employment with Recology, backed into plaintiff's vehicle, causing injury to plaintiff.

During discovery, plaintiff served Requests for Production of Documents (RFPs), Set One, Nos. 5 & 12, on defendant McAlavey, which asked McAlavey to produce all incident reports relating to the collision. McAlavey's responses acknowledged the existence of an internal incident report, but McAlavey withheld production of the report based on attorney-client privilege and work product.

Following an unsuccessful Informal Discovery Conference (IDC), plaintiff filed the present Motion, seeking to compel defendant McAlavey (1) to serve further responses to RFPs Nos. 5 & 12; and (2) to produce the incident report. Alternatively, in the event the court declines to compel production of the report, plaintiff asks the court to order an in-camera review of the incident report to assess the privilege claim. Plaintiff also seeks monetary sanctions against McAlavey and his counsel.

B. Governing Law

The party claiming privilege has the burden of showing that the evidence which it seeks to suppress is within the terms of the statute. (*D.I. Chadbourne, Inc. v. Superior Ct. of City & County of San Francisco* (1964) 60 Cal. 2d 723, 729 (*D.I. Chadbourne*).) Where the evidence establishes that a document sought in discovery is privileged as a matter of law, the court should not compel its production, nor conduct an in-camera inspection of the document. (*Ibid.*)

"When the employee of a defendant corporation is also a defendant in his own right (or is a person who may be charged with liability), his statement regarding the facts with which he or

his employer may be charged, obtained by a representative of the employer and delivered to an attorney who represents (or will represent) either or both of them, is entitled to the attorney-client privilege on the same basis as it would be entitled thereto if the employer-employee relationship did not exist.” (*D.I. Chadbourne, supra*, at pp. 736-738) “Where the employee’s connection with the matter grows out of his employment to the extent that his report or statement is required in the ordinary course of the corporation’s business, the employee is no longer an independent witness, and his statement or report is that of the employer.” (*Ibid.*) “If, in the case of the employee last mentioned, the employer requires (by standing rule or otherwise) that the employee make a report, the privilege of that report is to be determined by the employer’s purpose in requiring the same; that is to say, if the employer directs the making of the report for confidential transmittal to its attorney, the communication may be privileged.” (*Ibid.*) “If otherwise privileged under the rules stated above, a communication does not lose its privilege merely because it was obtained, with the knowledge and consent of the employer, by an agent of the employer acting under such agency.” (*Ibid.*)

C. The Motion to Compel Further Responses to RFPs Nos. 5 & 12, and to Compel Production of the Incident Report is Denied

There is no dispute that defendant McAlavey was employed by defendant Recology, Inc. at the time of the collision. There also appears to be no dispute that at the time, McAlavey was driving his employer’s vehicle, and was in the course and scope of his employment, thus potentially giving rise to respondeat superior liability on the part of McAlavey’s employer, Recology. Both McAlavey and Recology are represented by the same counsel.

The evidence indicates that on the day of the collision, as part of company procedure, two company employees (Jarick Pink and Vanisha Narayan) interviewed McAlavey for the purpose of gathering information for later transmission to the company’s and the employee’s counsel, in the event of litigation. By any objective measure, given the facts of the case, litigation was already foreseeable at that point.

Plaintiff’s RFPs Nos. 5 and 12 seek production of all incident reports pertaining to the collision. Defendant McAlavey responded to the RFPs, by stating, in part:

An internal company incident report exists and is in the possession of Mr. McAlavey’s counsel, but will be withheld under a claim of privilege, as the incident report was created in anticipation of litigation. The privileges applicable include but are not limited to attorney-client privilege (Evid. Code § 917; See *D.I. Chadbourne, Inc. v. Superior Court* (1964) 60 Cal.2d 723, 729) and work product privilege (See *Coito v. Superior Court* (2012) 54 Cal.4th 480, 485). The incident report was prepared by Jarick Pink and Vanisha Narayan, Recology Employees, on July 5, 2023, for the primary purpose of preparing for litigation.

(Plaintiff’s Feb. 6, 2026 Separate Statement at 1-2.)

On May 7, 2026, plaintiff deposed Vanisha (Narayan) Singh, Recology's Person Most Knowledgeable (PMK). Singh testified that incident reports such as the report at issue are created in anticipation of litigation, that the primary purpose of creating such reports is to prepare for litigation, and that the incident report of defendant McAlavey's collision has been shared only with those handling and involved in defending this lawsuit. (June 16, 2026 Schunk Decl., exh. D [Singh Tr.] at p. 83.)

Viewed in its totality, the evidence indicates that the incident report is protected from discovery by the attorney-client privilege. Although no lawsuit existed at the time of its creation (the report was created on the day of the collision), the evidence shows that Recology had a policy of creating such incident reports for later transmission to, and use by, the company's defense counsel, which is exactly what happened here. Consistent with company policy, two employees created the report for the sole purpose, or at least, the primary purpose, of later transmission to defense counsel. Recology's PMK also testified that the incident report has, in fact, only been shared with the defendants (that is the company's and McAlavey's) litigation defense team. This evidence establishes a prima facie showing that the incident report is protected from disclosure by the attorney-client privilege, which, standing alone, justifies withholding it from production.

The same evidence also suggests that qualified work product protection may apply, although defendants' argument on this point appears weaker. (Code Civ. Proc., § 2018.030, subd. (b).) California distinguishes between absolute work product and qualified work product, and since the incident report here was not generated by counsel, it cannot be viewed as absolute work product. (*Coito v. Superior Court* (2012) 54 Cal.4th 480 (*Coito*).) However, courts have recognized that documents prepared by company employees at the direction of counsel, or for transmission to counsel in anticipation of litigation, may be subject to qualified work product protection. (*Ibid.*)

Section 2018.030, subdivision (b) states that qualified work product may be discoverable if the court "determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice." Plaintiff has not shown any "unfair prejudice" here. The collision was apparently captured on video. (See Plaintiff's Mot., at p. 3 ["[t]he collision was captured entirely on video."].) Plaintiff has made no showing that denying him access to an internal report created by Recology for the benefit of its defense counsel would cause plaintiff "unfair prejudice." Nor has plaintiff argued that McAlavey is no longer available for deposition.

The strongest argument against recognizing qualified work product protection here is the lack of evidence that an attorney directed the interview that led to the report's creation. (See *Coito, supra*, 54 Cal.4th at pp. 494-497 ["witness statements obtained as a result of interviews conducted by an attorney, or by an attorney's agent at the attorney's behest, constitute work product protected a witness statement obtained through an attorney-directed interview is, as a matter of law, entitled to at least qualified work product protection."].) Here, when the report was created, no litigation had been filed, and no attorney had been appointed, which weighs against the qualified work product claim. But those facts are not necessarily dispositive.

Defendants' evidence suggests that where, as here, litigation was immediately anticipated by the company, and where the company created the report solely (or predominately) for use in future litigation, and the report was thereafter used solely for defense of the lawsuit, qualified work product protection could potentially apply.

The court need not resolve this question of whether qualified work product protection applies, however, because, as explained above, the attorney-client privilege applies. The evidence sufficiently indicates that the company's primary purpose in creating the report was for future use in litigation by the company's and McAlavey's defense counsel. And it appears the report was thereafter used solely for litigation defense. It appears more accurate to characterize the incident report as a product of the company's litigation-preparation procedures than as an ordinary business record. Accordingly, the motion to compel its production is denied.

D. The Alternative Request for an In-Camera Review is Denied

The court does not order in-camera review merely because parties dispute a privilege claim. Rather, the court generally requires some factual basis for believing that the claimed privilege(s) do not apply, or have been waived, or that the subject document is not what the responding party claims it to be, or that the withholding party has engaged in some type of misconduct that places the claimed privilege into question. None of these circumstances exist here. Plaintiff argues that the incident report was not created by an attorney, and is not a direct communication with an attorney, and therefore, is not privileged. But as explained above, the attorney-client privilege and work product doctrine are broader than plaintiff appears to suggest. The court finds that plaintiff has not presented evidence creating a sufficient fact dispute about the applicability of the claimed privilege(s) to warrant an in-camera review. The court declines to conduct an in-camera review merely to test a facially-supported privilege claim.

E. The Motion to Compel McAlavey to Produce a Privilege Log is Denied

Plaintiff also seeks an order that would compel McAlavey to serve a privilege log pursuant to Code of Civil Procedure. Section 2031.240, subdivision (c)(1), which states:

(c)(1) If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.

Based on McAlavey's responses to RFPs Nos. 5 & 12, producing a privilege log would be redundant and unnecessary. The RFP responses already confirm the incident report's existence, when it was prepared, who prepared it, and what privileges are claimed. The Responses also state that the report was prepared in anticipation of litigation, for the primary purpose of preparing for litigation. Given these facts, a privilege log to be unnecessary.

In light of the foregoing, plaintiff's request for monetary sanctions against McAlavey and/or his counsel is **DENIED**. (Code Civ. Proc. §§ 2031.310, subd. (h) and 2023.030.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants' counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 8**

24-CLJ-01348

PORTFOLIO RECOVERY ASSOCIATES, LLC VS. ARTURO RODRIGUEZ

PORTFOLIO RECOVERY ASSOCIATES, LLC
ARTURO RODRIGUEZ

WILLIAM BLISS
SCOTT MAURER

Defense Motion for Summary Judgment

TENTATIVE RULING:

Initially, the court notes that defendant Arturo Rodriguez provided an incorrect address for the hearing. Department 28 is not located in Redwood City as the notice states, but instead at Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (See Cal. Rules of Court, rule 3.1110 [the Notice “must specify” the location of the hearing].)

Defendant’s unopposed motion for summary judgment as to the February 28, 2024 complaint filed by plaintiff Portfolio Recovery Associates, LLC, is **GRANTED**.

Defendant’s request for judicial notice of two exhibits is **GRANTED**. (Evid. Code §§ 452, 453.) The court takes judicial notice of the records in its own files. (*Id.*, § 452, subd. (d).)

No evidentiary objections have been filed.

A. Background

This is a debt collection matter. The complaint filed on February 28, 2024, pleads two common count causes of action — account stated and open book account. Defendant filed the instant motion for summary judgment on the basis that both the claims alleged in plaintiff’s complaint are barred by the applicable statute of limitations.

B. Legal Standard

The purpose of a motion for summary judgment “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute. [Citations.]” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*)). The motion shall be granted if all the evidence submitted shows no triable issue as to any material fact and moving party is entitled to judgment as a matter of law. The court shall consider all evidence set forth, except evidence to which objections are sustained, and draw “all inferences reasonably deducible from the evidence” and uncontradicted by other inferences or evidence. (Code Civ. Proc. § 437c, subd. (c).) “The court’s sole function on a motion for summary judgment is *issue-finding*, not issue-determination. The judge must simply determine from the evidence submitted whether there is a “triable issue as to any material

fact.” [CCP § 437c(c) (emphasis added).] (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group June 2026 Update) ¶ 10:270.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519 (*Scalf*)). “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar, supra*, 25 Cal.4th at p. 850.) The movant “has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established...” (*Scalf, supra*, at p. 1520.)

Once defendant has met their burden, the burden shifts to the plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, plaintiff “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (*Ibid.*) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

A “book account” is “a detailed statement which constitutes the principal record of one or more transactions between a debtor and a creditor arising out of a contract or some fiduciary relation, and shows the debits and credits in connection therewith, and against whom and in favor of whom entries are made, is entered in the regular course of business as conducted by such creditor or fiduciary, and is kept in a reasonably permanent form and manner and is (1) in a bound book, or (2) on a sheet or sheets fastened in a book or to backing but detachable therefrom, or (3) on a card or cards of a permanent character, or is kept in any other reasonably permanent form and manner.” (Code Civ. Proc., § 337a.) A book account is “open” where a balance remains due on the account. (*Professional Collection Consultants v. Lauron* (2017) 8 Cal.App.5th 958, 969 (*Lauron*), citing *Interstate Group Administrators, Inc. v. Cravens, Dargan & Co.* (1985) 174 Cal.App.3d 700, 708.) “The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due.” (*Zinn v. Fred R. Bright Co.* (1969) 271 Cal.App.2d 597, 600; see also *Maggio, Inc. v. Neal* (1987) 196 Cal.App.3d 745, 752.)

C. Discussion

Under both causes of action pled in the complaint, the statute of limitations begins to run from the date of the last item entered in the book account. (*Lauron, supra*, 8 Cal.App.5th at p. 966.) The statute of limitations for each cause of action is four years. (Code Civ. Proc., § 337, subd. (b).)

“When a creditor charges off a debt, the creditor declares the debt is unlikely to be collected and takes a tax deduction on the debt. [citation] This typically occurs after six months of nonpayment by the debtor. [citation] Although it has been deemed uncollectible by the original creditor, the debt remains legally valid after a charge-off.” (*Cavalry SPV I, LLC v. Watkins* (2019) 36 Cal.App.5th 1070, 1075, fn. 1, citations omitted.)

Defendant contends that he is entitled to judgment as a matter of law because his credit account was charged off on February 6, 2019, yet plaintiff did not file its complaint until February 28, 2024. (Def’t. Sep. Statement Undisputed Material Facts [SSUMF], ¶¶ 1, 2 & 6.) Because the motion is unopposed, if defendant meets his burden to show that the statutory period in which plaintiff had to file his action has expired, he meets his initial burden.

The complaint alleges the date of the last payment on the credit account was March 22, 2022. (SSUMF No. 7.) In his declaration, defendant asserts that he neither made a payment in or around March of 2022 nor directed anyone else to make such a payment. (Declaration of Arturo Rodriguez iso MSJ, ¶ 2.) Furthermore, defendant had no knowledge of any such payment being made. (*Ibid.*)

Exhibit A to the declaration of defense counsel Scott Maurer filed in support of this motion, a letter from plaintiff’s counsel dated September 14, 2023, indicates that at some point between February 6, 2019 (the date of the charge off) and the date of the letter, September 14, 2023, either a payment or a credit toward the debt of \$595.88 was made.

An account stated and an open book account exist between a creditor and a debtor. The original creditor on this account was Synchrony Bank. The account stated and open book account were with Synchrony Bank. (See RJN, exh. C [Decl. iso Default Judgment], ¶¶ 8.b & h.1, and exhs. B & C thereto.) Accordingly, the “last item” in the account between creditor and debtor was in January 2019. (See *id.*, exh. C.)

Plaintiff Portfolio Recovery Associates, LLC is a debt buyer. As such, it did not extend credit to defendant. Any credits or payments made after the account was charged off and sold by the original creditor were made to plaintiff Portfolio Recovery Associates, LLC and not to the original creditor. The last item in the account was entered in or about January 2019 and the complaint was filed more than four years later, on February 28, 2024. Accordingly, the complaint is time-barred. The case is therefore dismissed with prejudice.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 9**

25-CIV-03331

DIANA DUNKELIS VS. REUBEN J. DONIG, ET AL

DIANA DUNKELIS
REUBEN J. DONIG

BRADLEY J. MANCUSO
SCOTT R. RABER

DEFENDANT LEAH BOTTINI'S DEMURRER TO PLAINTIFF'S VERIFIED FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Defendant Leah Bottini's demurrer to plaintiff Diana Dunkelis's first amended complaint (FAC) is SUSTAINED with and without leave to amend, as set forth below.

Any amended complaint must be filed within ten (10) days of notice of entry of the formal order.

A. Thirteenth Cause of Action for Harassment (Gov. Code, §12940, subd. (j))

The elements of a cause of action for harassment of an employee under the Fair Employment and Housing Act (FEHA) are as follows: (1) the plaintiff must be an employee, applicant, unpaid intern or volunteer, or a person providing services pursuant to a contract who belongs to a protected class, (2) the plaintiff must show that they were subjected to unwelcome harassment, (3) the harassing conduct must be because of the plaintiff's membership in a protected class, (4) the harassment must be sufficiently severe or pervasive to alter the conditions of the victim's employment and create a hostile or abusive working environment, and (5) the standard for employer liability depends on who committed the harassment with an employer being strictly liable for harassment committed by a supervisor or agent while harassment by a non-supervisory co-employee is unlawful only if the employer, or its agents or supervisors, knew or should have known of the conduct and failed to take immediate and appropriate corrective action. (Gov. Code, § 12940; *Kelley v. The Conco Companies* (2011) 196 Cal.App.4th 191, 202-203; *Taylor v. Nabors Drilling USA, LP* (2014) 222 Cal.App.4th 1228.)

Plaintiff alleges that defendant Leah Bottini discriminated against her based on plaintiff's age by interfering with plaintiff's computer, slowing it down, failing to give plaintiff the password to plaintiff's new computer, disorganizing the firm's blue files which plaintiff was responsible for maintaining, failing to inform plaintiff of the arrival of medical records, failing to forward subpoenas, locking plaintiff out of filing cabinets and storage rooms, hiding client documents, locking away supplies, converting settlement documents to password protected pdfs so that plaintiff could not access them, changing factual information in documents created by plaintiff so that the information was incorrect, throwing out redacted client documents and serving unredacted documents on opposing counsel, taking plaintiff's newly purchased office chair, turning off the heat when leaving the office while plaintiff was still working, and making false statements about plaintiff to clients. (FAC, ¶ 54.) Plaintiff alleges that Bottini did these

acts because she wanted plaintiff's job, and was later promoted into plaintiff's position after plaintiff was terminated. (*Id.*, ¶ 53.)

Plaintiff further alleges that she was subjected to unwanted harassing conduct by Bottini, because of plaintiff's age, "which led to adverse employment actions against plaintiff, including but not limited to, subjecting her to differential and demeaning treatment, oppression, unhealthy work conditions (i.e. working in freezing temperatures and conditions conducive to mold, fungi, and bacteria), decrease in work load, unwelcome and inappropriate comments and behavior, threats of termination if she spoke out, and actual wrongful termination, in addition to subjecting Plaintiff to a work environment permeated with illegal and unwanted harassing and discriminatory conduct." (FAC, ¶ 240.)

Bottini argues that these allegations do not show that plaintiff was treated differently because of her protected status and that they do not show severe and pervasive conduct that gives rise to a hostile work environment.

The alleged conduct, taken as true for purposes of demurrer, does not state a cause of action for harassment based on age. Plaintiff has not pled facts showing that Bottini took these allegedly harassing actions because of plaintiff's age. Plaintiff also has not alleged that Bottini was a supervisor. Nor has she alleged that Donig knew or should have known of Bottini's allegedly harassing actions.

The demurrer to this cause of action is therefore **SUSTAINED with leave to amend.**

B. Sixteenth Cause of Action for Intrusion into Private Affairs

A common law claim for intrusion into private affairs requires a plaintiff to prove two elements: (1) intentional intrusion into a private place, conversation or matter, and (2) in a manner highly offensive to a reasonable person. (*Marich v. MGM/UA Telecommunications, Inc.* (2003) 113 Cal.App.4th 415, 421.)

Plaintiff alleges that defendants installed hidden cameras above her desk and in the reception area, and that she had a reasonable expectation of privacy around her desk. (FAC, ¶ 276.) The FAC is unclear as to whether plaintiff alleges that Bottini installed any cameras. In light of the original Complaint's allegation against only the Donig defendants, and the lack of specificity, these allegations are insufficient to support a cause of action for intrusion into private affairs against Bottini. Plaintiff additionally alleges that: "Defendants violated Plaintiff's right to privacy when MISS BOTTINI was given remote access the office computers, including Plaintiff's computer, as well as access to all of MR. DONIG's emails. This was a violation of Plaintiff's reasonable expectation of privacy—Plaintiff sent MR. DONIG emails that were intended for him only, not for MISS BOTTINI." (*Id.*, ¶ 277.) The allegations relating to emails are insufficient to support the cause of action because plaintiff had no reasonable expectation of privacy once the emails were sent, since Donig was free to share the contents of emails sent to him with others. The allegations are also insufficient in relation to access to office computers, since there was no reasonable expectation of privacy on a work device.

The demurrer to this cause of action is **SUSTAINED with leave to amend** only as to the placement of a camera by Bottini. If plaintiff has facts supporting such claims, her counsel must appear at the hearing and state whether such facts exist. If no such facts are alleged to exist, the demurrer to this cause of action is **SUSTAINED without leave to amend**.

C. Seventeenth Cause of Action for Intentional Interference with Prospective Economic Relations

Under California law, a cause of action for intentional interference with prospective economic relations requires five essential elements: (1) an economic relationship between plaintiff and some third party, with the probability of future economic benefit to plaintiff; (2) defendant's knowledge of the relationship; (3) intentional acts on part of defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to plaintiff proximately caused by acts of defendant. (*ZF Micro Solutions, Inc. v. TAT Capital Partners, Ltd.* (2022) 82 Cal.App.5th 992, 1002, fn 5.)

Plaintiff does not allege that Bottini is a third party as between plaintiff and the Donig defendants, but instead alleges that she is an employee of defendant Law Office of Reuben J. Doing. (FAC, ¶ 4.) The first element therefore is not satisfied.

The demurrer to this cause of action is **SUSTAINED without leave to amend**, because plaintiff cannot allege a third party relationship without contradicting the FAC.

D. Eighteenth and Nineteenth Causes of Action for Inducing Breach of Contract and Intentional Interference with Contractual Relations

These causes of action are pled in the alternative "in the event it is determined Plaintiff and DONIG were in a contractual relationship." (FAC, ¶¶ 296, 308.) However, because plaintiff affirmatively alleges that there was no contract and that she "was misclassified as an independent contractor," the elements of these causes of action cannot be satisfied. (*Id.*, ¶ 295.)

The demurrer to these causes of action is **SUSTAINED without leave to amend**.

E. Tenth Cause of Action for Violation of the UCL

To state a claim for violation of California's Unfair Competition Law (UCL), a plaintiff must establish: (1) that the defendant engaged in a business act or practice falling within at least one of three prongs — unlawful, unfair, or fraudulent — and (2) that the plaintiff has standing by having suffered injury in fact and lost money or property as a result of the unfair competition. (Bus. & Prof. Code, §§ 17200, 17204.)

Plaintiff alleges that "Defendant, LEAH BOTTINI, engaged in unlawful, unfair, and fraudulent business practices as evidenced by violations of public policy and tortious economic interference practices, such as, Intentional Interference with Prospective Economic Relations or, in the alternative, Inducing Breach of Contract and Intentional Interference with Contractual Relations." (FAC, ¶ 196.) However, as discussed above, plaintiff's claims for intentional

interference with prospective economic relations or, in the alternative, inducing breach of contract and intentional interference with contractual relations are insufficient, and therefore cannot be used as a predicate for this claim. Plaintiff also fails to allege injury in fact resulting from the alleged unfair competition.

The demurrer to this cause of action is **SUSTAINED with leave to amend.**

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant Bottini's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 10**

25-CIV-03331

DIANA DUNKELIS VS. REUBEN J. DONIG, ET AL

DIANA DUNKELIS
REUBEN J. DONIG

BRADLEY J. MANCUSO
SCOTT R. RABER

DOING DEMURRER TO PLAINTIFF'S VERIFIED FIRST AMENDED COMPLAINT

TENTATIVE RULING:

The unopposed demurrer of Defendants Reuben J. Donig (Donig) and Law Office of Reuben J. Donig (Law Office, and collectively defendants) to the Verified First Amended Complaint (FAC) by plaintiff Diana Dunkelis (plaintiff) is **SUSTAINED with leave to amend**.

Any amended complaint must be filed within ten (10) days of notice of entry of the formal order.

A. Twelfth Cause of Action

The demurrer to the twelfth cause of action for sexual favoritism harassment is **SUSTAINED with leave to amend** for failure to allege facts sufficient to support this cause of action against defendants.

“Sexual favoritism” means that another employee has received preferential treatment with regard to promotion, work hours, assignments, or other significant employment benefits or opportunities because of a sexual relationship with an individual representative of the employer who was in a position to grant those preferences. (Judicial Council of California Civil Jury Instruction 2521C.) The elements of a cause of action for sexual favoritism harassment are:

1. That [name of plaintiff] was [an employee of/an applicant for a position with/a person providing services under a contract with/an unpaid intern with/a volunteer with] [name of defendant];
2. That there was sexual favoritism in the work environment;
3. That the sexual favoritism was severe or pervasive;
4. That a reasonable [describe member of protected group] in [name of plaintiff]'s circumstances would have considered the work environment to be hostile, intimidating, offensive, oppressive, or abusive because of the sexual favoritism;
5. That [name of plaintiff] considered the work environment to be hostile, intimidating, offensive, oppressive, or abusive because of the sexual favoritism;

6. [Select applicable basis of defendant's liability:]

[That a supervisor [engaged in the conduct/created the sexual favoritism];]

[or]

[That [name of defendant] [or [his/her/nonbinary pronoun/its] supervisors or agents] knew or should have known of the sexual favoritism and failed to take immediate and appropriate corrective action;]

7. That [name of plaintiff] was harmed; and

8. That the conduct was a substantial factor in causing [name of plaintiff]'s harm.

Allegations of a romantic relationship between a supervisor and an employee, without more, do not give rise to a sexual harassment claim under the Fair Employment and Housing Act (FEHA). (*Proskel v. Gattis* (1996) 41 Cal.App.4th 1626, 1631.) In *Proskel*, the trial court granted summary adjudication of the plaintiff's sexual discrimination and sexual harassment claims against her employer under FEHA. (*Id.*, at p. 1629.) The Court of Appeal affirmed. (*Ibid.*) Significantly, other than favoritism, the plaintiff did not allege that her former employer led plaintiff or any other employee to believe that they could obtain favorable treatment from him if they became romantically involved with him. The plaintiff also did not present any facts that showed the manner in which the romantic affair was conducted was so indiscreet as to create a hostile work environment. (*Ibid.*) The plaintiff further did not present evidence of other pervasive conduct that created a hostile work environment. (*Id.*, at pp. 1629-1630.)

Here, the allegations are insufficient to support the claim that defendants engaged in sexual favoritism. Plaintiff worked as a paralegal, while defendant Leah Bottini (Bottini) was hired as a secretary. Plaintiff claims that a number of adverse employment actions were taken against her, but she fails to allege facts sufficient to support that they were taken because of sexual favoritism. For instance, plaintiff alleges being locked out of her computer and that Bottini was given remote access to all computers, but the FAC alleges that shortly after Bottini started, Donig informed plaintiff that Bottini knew a lot about computers and could take over IT if needed. (FAC, ¶ 56.) Thus, it is unclear whether such actions occurred due to sexual favoritism. Similarly, plaintiff fails to adequately allege facts to support that the freezing temperatures and conditions conducive to mold, fungi and bacteria were due to sexual favoritism.

B. Thirteenth Cause of Action

The demurrer to the thirteenth cause of action for age harassment is **SUSTAINED with leave to amend** for failure to allege facts sufficient to support this cause of action. This cause of action is alleged against the Law Office, but not Donig. (FAC, ¶ 235.)

Under the FEHA, it is unlawful "[f]or an employer ... because of ... age ... to harass an employee" (Gov. Code, § 12940, subd. (j)(1).) To establish a prima facie case of a hostile work environment, a plaintiff must show that (1) plaintiff is a member of a protected class; (2)

plaintiff was subjected to unwelcome harassment; (3) the harassment was based on plaintiff's protected status; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment. (*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581, citing *Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876.)

Plaintiff alleges that she was in her 60s while working for the Law Office. (FAC, ¶ 239.) The FAC alleges Bottini engaged in certain behaviors to intentionally sabotage every older worker, including plaintiff, and that Donig condoned these actions. (*Id.*, ¶¶ 54-67, 240.) Bottini allegedly persuaded Donig to terminate the contractual relationship with other older workers over 50, Mike Barnes (IT Technician) and Norma Scritzky (document retrieval support). (*Id.*, ¶ 55.) Donig also stated that they were old and did not know what they were doing. (*Id.*, ¶¶ 62, 66.) However, plaintiff does not allege any similar comments were made to her. As such, the allegations are insufficient to support that any claimed harassment was because of plaintiff's age.

C. Fourteenth Cause of Action

The demurrer to the fourteenth cause of action for FEHA retaliation is **SUSTAINED with leave to amend** for failure to allege facts sufficient to support this cause of action against defendants.

It is unlawful "[f]or any employer, labor organization, employment agency, or person to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under this part or because the person has filed a complaint, testified, or assisted in any proceeding under this part." (Gov. Code, § 12940, subd. (h).) In order to establish a prima facie claim for retaliation under FEHA, the plaintiff must show (1) the employee engaged in a protected activity, (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. (*Bailey v. San Francisco Dist. Attorney's Office* (2024) 16 Cal.5th 611, 636.) When the circumstances surrounding an employee's conduct are sufficient to establish that the employer knew that an employee is opposing practices forbidden under FEHA, the purpose of the antiretaliation provision is applicable whether or not the employee explicitly and directly told the employer. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1046-1047.)

The FAC alleges defendants retaliated against plaintiff for her complaints of harassment and discrimination, by taking adverse employment actions against plaintiff, including but not limited to, "subjecting her to differential and demeaning treatment, oppression, unhealthy work conditions (i.e. working in freezing temperatures and conditions conducive to mold, fungi, and bacteria), decrease in work load, unwelcome and inappropriate comments and behavior, threats of termination if she spoke out, and actual wrongful termination, in addition to subjecting Plaintiff to a work environment permeated with illegal and unwanted harassing and discriminatory conduct." (FAC, ¶ 256.) However, plaintiff fails to sufficiently allege facts to support complaints of harassment and discrimination, i.e. engaging in protected activity, as well

as that these actions were taken against her for such complaints, i.e. a causal link between engaging in protected activity and these adverse actions.

D. Fifteenth Cause of Action

The demurrer to the fifteenth cause of action for failure to prevent harassment, discrimination and/or retaliation is **SUSTAINED with leave to amend** for failure to allege facts sufficient to support this cause of action against defendants.

The FEHA provides that it is an unlawful employment practice “[f]or an employer...to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring.” (Gov. Code, § 12940, subd. (k).) A plaintiff seeking to recover damages under Section 12940, subdivision (k) for failure to prevent harassment must show three elements: (1) plaintiff was subjected to harassment; (2) defendant failed to take all reasonable steps to prevent harassment; and (3) this failure caused plaintiff to suffer injury, damage, loss or harm. (*Caldera v. Department of Corrections and Rehabilitation* (2018) 25 Cal.App.5th 31, 43-44.) Because plaintiff fails to allege facts sufficient to support her harassment claim, this claim also fails. (See *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 289 [a finding of harassment or discrimination of the employee was required before an employer could be held liable for failure to take all reasonable steps necessary to prevent employment discrimination and harassment].)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants’ counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

POSTED: 11:45 am